

Pramod Shankar Sharma v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 22 March 2023 · WRIT - C No. 9212 of 2023 · **Final assessment and recovery citation quashed; fresh order left open.**

HEADNOTE

On the Electricity Department's concession that the final assessment was not in consonance with law, the High Court quashed that order and the recovery citation issued on it, and left the respondents free to pass a fresh order strictly in accordance with the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Pramod Shankar Sharma challenged the final assessment order dated 23 August 2022 passed by respondent no. 3 and the recovery citation dated 16 January 2023 issued in pursuance of that order. He also sought a direction that the respondents consider his statutory objections dated 25 July 2022, 26 September 2022 and 6 February 2023, which he had filed in response to the notice of provisional assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.2

Final assessment not following Supply Code procedure

HOLDING

Where the licensee states that a final assessment is not in consonance with law and will be withdrawn, and that a fresh order will be passed after following the procedure under the Electricity Supply Code, 2005, the final assessment and the recovery citation issued in pursuance of it are quashed, leaving the licensee to pass a fresh order strictly in accordance with law. ¶ 1

PRINCIPLE TAGS

UP-2005::6.2 The final assessment dated 23 August 2022 and the recovery citation dated 16 January 2023 were quashed on the licensee's concession that the assessment did not conform to law, with liberty to pass a fresh order under the Supply Code procedure. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT AND OF THE CONSUMER'S STATUTORY OBJECTIONS

The respondents were left free to pass a fresh order strictly in accordance with law. ¶ 1